

9:00 A.M.

Calendar Line # 3

Case Name Michael Douglas vs Ford Motor Company et al

Case No. 24CV452437

Motion for Summary Adjudication

Before the court is defendant Ford Motor Company's motion for summary adjudication against plaintiff Michael Douglas's fifth cause of action. Pursuant to California Rule of Court, rule 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Michael Douglas ("Douglas") filed a Complaint on November 22, 2024, against defendants Ford Motor Company ("Ford") and Future Ford Lincoln of Roseville seeking claims under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the "Act"). According to the Complaint, Plaintiff purchased a 2018 Ford F150, vehicle identification number: 1FTEW1EG2JFA32480 under warranty on March 3, 2018 (the "Subject Vehicle"). (Complaint, ¶ 10). Before Plaintiff purchased the vehicle, Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects that would cause hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (the "Transmission Defect"). (*Id.* at ¶ 26).

Plaintiff alleges the following six causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair.

Ford filed the instant motion for summary adjudication ("MSA") on May 14, 2026 that was accompanied by a proof of service indicating electronic mail service to the plaintiff's counsel. On May 27, 2026, the court granted Ford's *ex parte* application to advance the hearing on Ford's motion from September 8, 2026 to August 6, 2026 as this matter is set for a jury trial on September 8, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply.

The Court has carefully reviewed the Defendant's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 11 pages); Separate Statement (totaling 11 page); Declaration of Katherine P. Vilchez and Exhibits A-I in support of the defendant's motion for summary adjudication (totaling 109 pages); Declaration of Eric Kalis in support of the defendant's motion (totaling 5 pages); *ex parte* application to advance the MSA date; Amended Notice for MSA (totaling 3 pages); Opposition papers (totaling 14 pages); Separate Statement in Opposition (totaling 25 pages); request for judicial notice in support of the plaintiff's opposition to the MSA (totaling 63 pages); notice of lodging documents under seal (totaling 3 pages); redacted Declaration of Benjamin Fuchs in support of the plaintiff's opposition (totaling 15 pages); Declaration of Benjamin Fuchs in support of the plaintiff's opposition and Exhibit 1 (totaling 489 pages); Reply brief (totaling 12 pages); Defendant's responses and objections to plaintiff's separate statement of undisputed facts (totaling 17 pages); Defendant's response to plaintiff's request for judicial notice (totaling 31 pages); Defendant's evidentiary objections to Declaration of Fuchs (totaling 31 pages); Declaration of Haile M Rogerson in support of the MSA and attached Exhibits A-D (totaling 37 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c)).

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850). “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. PROCEDURAL VIOLATIONS

A. PLAINTIFF’S DELAY IN SERVING THE DECLARATION OF BENJAMIN FUCHS

Ford avers that the court should disregard Plaintiff’s opposition and grant its MSA because Plaintiff failed to serve the Declaration of Benjamin Fuchs with his opposition. While Plaintiff timely served Ford with his unredacted opposition on July 17, 2026, Plaintiff did not serve the accompanying declaration until close of business on July 20, 2026. (Declaration of Hailey M. Rogerson, Exhs. A-B). Ford claims that it was unduly prejudiced because it was required to review over 400 pages of documents over four business days. The court notes, however, that Plaintiff’s counsel stated in his email containing the opposition that the exhibits to his declaration were “the standard *O’Connor* exhibits. . . so no surprises there.” (*Id.* at Exh. A). Ford contends in its reply that Mr. Fuchs’s declaration contains statements and evidence nearly identical to a supporting declaration in another matter, *John J. Whitney v. Ford*, a Santa Clara County Superior Court case bearing the case number 24CV436492. (Reply, p. 5:16-21).

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.”]). However, the defendant is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court’s refusal to consider untimely filed papers.

B. REQUEST FOR JUDICIAL NOTICE

Plaintiff’s request for judicial notice of ten Technical Service Bulletins (“TSBs”) published on the website of the National Highway Traffic Safety Administration (“NHTSA”) is denied. Plaintiff does not cite authority permitting the court to take judicial notice of the truth of the TSBs’ contents. Plaintiff’s citation to *Shaw v. People ex rel. Chiang* (2009) 175 Cal.App.4th 577, 606 is inapposite because, there, the appellate court took judicial notice of a website showing the Department of Transportation’s structure and definition of “mass transportation.” The TSBs are information reported by Ford; the contents do not represent an “official act” of the NHTSA nor are they not reasonably subject to dispute. (See *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn.